

48. [εἰσὶ] δ' ἀποδέκται δέκα, κεκληρωμένοι κατὰ φυλάς· οὔτοι δὲ παραλαβόντες τὰ γραμματεῖα, ἀπαλείφουσι τὰ καταβαλλόμενα χρήματα ἐναντίον τ[ῆς βουλῆς] ἐν τῷ βουλευτηρίῳ, καὶ πάλιν ἀποδιδόασιν τὰ γραμματεῖα τ[ῷ δη]μοσίῳ· κἂν τις ἐλλίπη καταβολήν, ἐνταῦθ' ἐγγέγραπται, καὶ διπλά[σιον ἀ]νάγκη τὸ [ἐλλ]ειφθὲν καταβάλλειν ἢ δεδέσθαι, καὶ ταῦτα εἰσπράτ[τειν ἢ 2 βο]υλὴ καὶ δῆσαι [κυ]ρία κατὰ τοὺς νόμους ἐστίν. τῇ μὲν οὖν προτεραιᾷ δέχονται τὰς [καταβολὰς] καὶ μερίζουσι ταῖς ἀρχαῖς, τῇ

XLVIII 4 ἀποδιδόαι H-L.

ἐγγέγραπται Herwerden, Kontos, Gertz (edd.). διπλά[σιον] B²⁻⁴, κ-w³, κ⁴, Th; διπλ[οὺν] olim van Leeuwen (K-w^{1,2}, H-L, K³, B¹, S¹). 8 post τὰς legit τ vel κ Blass, unde καταβολὰς Kaibel 213 (B^{3,4}, Th); τ vel π Wilcken, unde idem Kaibel π[άσα]ς, 'quod potest verum esse' K⁴; τὰ χρ[ήματα] olim κ¹, B², S¹.

TESTIMONIA. XLVIII §§ 1, 2 *Harp. ἀποδέκται:...'Αρ. δ' ἐν τῇ 'Αθ. πολ. δεδήλωκεν ὡς δέκα τε ἦσαν (Epit.; εἴησαν codd.) καὶ ὡς "παραλαβόντες—χρήματα" τῆς βουλῆς ἐναντίον "ἐν τῷ—δημοσίῳ." καὶ ἀπλῶς ἃ πράττουσι διασαφεῖ. Bekk. An. 198, 1 (Etym. M. 124, 41; Zonaras 234; Bekk. An. 427, 13): ἀρχοντες κληρωτοί, δέκα τὸν ἀριθμὸν κατὰ φυλὴν εἰσιν, οἵτινες παρελάμβανον καὶ ἀπεδέχοντο τὰ γραμματεῖα τῶν ὀφειλόντων τῷ δημοσίῳ...εἰτα ἐξήταζον τὰ τε ὀφειδόμενα καὶ τὰ ἀποδιδόμενα χρήματα σὺν τῇ βουλῇ καὶ ἡμέρισιν εἰς ἃ χρ[ὴ] ἀναλίσκεν (Frag. 400², 440³). Schol. in Aeschin. 3 § 25 ἀποδέκται ἦσαν οἱ δεχόμενοι τὰ χρήματα τῶν καταβολῶν κτλ.

annulling laws and decrees (in Lys. i § 48, and Andoc. *De Myst.* 76), and to cancelling debts (in Dem. 25 § 70, ἐξαλείφεται τὸ ὄφλημα, and CIA i 32, 10, ἀποδόντων τὰ χρήματα καὶ ἐξαλειφόντων). Cf. CIA iv fasc. 2, 53 a, ἐξαλειψάτω contrasted with ἀντεγγραφάτω.

XLVIII § 1. ἀποδέκται] 'general receivers.' These officials were instituted by Cleisthenes to take over most of the duties previously performed by the κωλακρέται (Androtion ap. Harpocr. s.v.). They are mentioned in Dem. c. *Timocr.* §§ 162, 197, Aesch. c. *Ctes.* 25, *Pol.* 1321 b 31, ἄλλη δ' ἀρχὴ πρὸς τῇν αἰ πρόσδοι τῶν κοινῶν ἀναφέρονται, πᾶρ' ὧν φυλατῶντων μερίζονται (cf. l. 8 μερίζουσι) πρὸς ἐκάστην διοίκησιν· καλοῦσι δ' ἀποδέκτας τοῦτους καὶ ταμίαις, in an inser. of 418/7 B.C. quoted in note on § 4, ὁ βασιλεὺς. See Boeckh, II iv; Schömann, p. 417; Gilbert, i 264²; and *Dict. Ant.* s.v.; also Panske, *de Magistratibus Atticis*, i 46—60.

τὰ καταβαλλόμενα χρήματα] CIA ii 807 col. b 15, τοῦτο κατεβάλομεν ἀποδέκταις in B.C. 330/29; b 30, in B.C. 329/8; 803 col. a 93 and 138, b εἰς βουλευτήριον καταβάλομεν, B.C. 360 and 363.

ἐλλίπη καταβολήν] 'fail to pay an instalment.' Polyb. iv 60, 2, ἔλλειπειναι τινὰ τῶν ὀψωνίων.

ἐνταῦθ' ἐγγέγραπται] 'there stands his

name already entered' (while the rest are wiped out); this seems preferable to ἐντεῦθεν γέγραπται, 'a note is made of it from this record' (K.). ἐντεῦθεν ἐγγέγραπται is preferred by Foucart: 'à partir de ce moment il est inscrit comme débiteur public' (*Journal de Philologie*, xix, 1895, 24). ἐγγράφειν is specially applied to entering the names of state-debtors, Dem. 25 § 70 (cf. L and S, II 3).

διπλάσιον—καταβάλλειν] διπλοῦν is more frequent, but διπλάσιον is found in Andoc. *De Myst.* 73 (Kaibel, 213).

δῆσαι κυρία] In Dem. c. *Timocr.* 98 the speaker argues that, owing to the law proposed by Timocrates, allowing debtors to the treasury to find securities instead of making prompt payments, the βουλὴ (as well as the δικαστήρια) ceases to be κυρία δῆσαι. Cf. 45 § 1.

§ 2. μερίζουσι] CIA ii 38, 18 (not later than Ol. 100 = B.C. 380-), μερίσαι δὲ τὸ ἀργύριον—τοὺς ἀποδέκτας ἐκ τῶν καταβαλλομένων χρημάτων ἐπειδὴ τὰ ἐκ τῶν νόμων μερίσωσι. Ib. 181, τοὺς δὲ ἀποδέκτας μερίσαι τῷ ἀρκε]θεώρῳ ὅς ἂν αἰεὶ ἀρκε]θ[ωρήσῃ] τὸ ἀργύριον. 115 b 44, [τὸ ἀργ]ύριον τοῦτο μερίξεν τ[ὸς ἀποδ]έκτας τῷ ταμίᾳ τοῦ δήμ[ου εἰς τὸν] ἐνιαυτὸν ἕκαστον. 834 b (B.C. 329/8) col. ii 3, τὸ μερισθὲν εἰς τὰ ἔργα παρ' ἀποδεκτῶν ἐπιστάταις Ἐλευσινοθεν. *Pol.* 1321 b 31, quoted above. Cf. Boeckh, i 210 n. a, Fränkel.

δ' ὑστεραίᾳ τὸν τε μερισμὸν εἰσ[φέρου]σι γράφοντες ἐν σανίδι καὶ
 10 καταλέγουσιν ἐν τῷ βουλευτηρίῳ, καὶ προ[τιθ]έουσιν ἐν τῇ βουλῇ,
 εἴ τις τινα οἶδεν ἀδικοῦντα περὶ τὸν μερισμὸν ἢ ἄρ[χοντα] ἢ
 ιδιώτην, καὶ γνώμας ἐπιψηφίζουσιν, εἴαν τις τι δοκῇ ἀδικεῖν.

κληροῦσι δὲ καὶ λογιστὰς ἐξ αὐτῶν οἱ βουλευταὶ δέκα τοὺς 3
 λογιούμενους τ[αῖς ἀρ]χαῖς κατὰ τὴν πρυτανείαν ἐκάστην. κλη- 4
 15 ροῦσι δὲ καὶ εὐθύνοὺς ἕνα τῆς φυλῆς ἐκάστης, καὶ παρέδρους

9 εἰσ[φέρου]σι van Leeuwen (edd.); εἰσ[άγου]σι olim K.
 conieci (edd.). 12 ΔΟΚΗΙ: δόξη B¹ coll. 46 § 2.

10 προτιθέουσιν olim

TESTIMONIA. § 3 *Harp. λογισταὶ καὶ λογιστήρια: ...εἰσὶ δὲ τὸν ἀριθμὸν δέκα (ἐκάστης φυλῆς εἰς Schol. in Aeschin. 3 § 15; cf. ib. § 9), οἱ τὰς εὐθύνας τῶν διψηφμένων ἐκλογίζονται ἐν ἡμέραις ᾧ, ὅταν τὰς ἀρχὰς ἀποθῶνται οἱ ἀρχοντες... διελέκται περὶ τούτων 'Αρ. ἐν τῇ 'Αθ. πολ., ἐνθα δέκνυται ὅτι διαφέρουσι τῶν εὐθύνων. Pollux viii 99: καὶ τούτους ἡ βουλὴ κληροῖ κατ' ἀρχὴν ὡς παρακολουθεῖν τοῖς διοικοῦσιν.

§ 4 *Harp. εὐθυνοί:—δέκα τὸν ἀριθμὸν ἄνδρες ἦσαν, παρ' οἷς ἐδίδοντο οἱ πρεσβεύσαντες ἢ ἀρξάντες ἢ διοικήσαντές τι τῶν δημοσίων τὰς εὐθύνας. διελέκται περὶ αὐτῶν 'Αρ. ἐν τῇ 'Αθ. πολ. Phot. εὐθυνος: ἀρχὴ ἦν τις. ἐξ ἐκάστης δὲ φυλῆς ἕνα κληροῦσι τούτῳ δὲ δύο παρέδρους (Frag. 405², 445³).

μερισμὸν] 'the apportionment'; rarely found in this sense. For exx. see Dittenberger, no. 344, 18, 21, 23.

σαν[ίδι] rare in sing. Dem. 25 § 70 (of the record of a debt) ἡ σανὶς ἢ παρὰ τῇ θεῷ κειμένη.

προτιθέουσιν] 44 § 3.

§ 3. λογιστὰς] These are identical in name and number with those mentioned in 54 § 2. Both bodies are appointed by lot; but the λογισταὶ in the text are a committee of the Council. They are therefore to be distinguished from the board of λογισταί, who, with their συνήγοροι, audit the accounts of all officials at the close of their term of office. The officials appointed by lot are enumerated in c. 50—64; c. 54, in § 2 of which the λογισταὶ are named, is introduced with the words: κληροῦσι δὲ καὶ τὰςδε τὰς ἀρχάς. This implies that the officials in question have not been mentioned before. The existence of a committee of the Council, side by side with a board of the same name, appears to be supported by the analogy of the committee entitled οἱ ἐπὶ τὸ θεωρικὸν ἡρμένιοι (CIA ii 739), and the βουλευτὴς described as ἐπὶ τὸ θεωρικὸν (CIA ii 114 c 5), existing by the side of the official board οἱ ἐπὶ τῷ θεωρικῷ. The double sense of λογισταὶ is confirmed by Pollux viii 99, λογισταὶ δύο ἦσαν ὁ μὲν τῆς βουλῆς ὁ δὲ τῆς διοικήσεως, καὶ τούτους ἡ βουλὴ κληροῖ κατ' ἀρχὴν ὡς παρακολουθεῖν τοῖς διοικοῦσιν (Lipsius, *Leipzig Verhandl.* pp. 64—67). λογιστὰς δύο is the reading in Bekker's best MS;

the rest have δύο δ', making it refer to the ἀντιγραφεὺς (see 54 § 3).

The λογισταὶ of the text are also distinguished from those of c. 54 by Gilbert (i 248, 250²) and by Busolt. But they are identified by Thumser, p. 652 n. 4. If they are identical, the mention of the same officials in two passages implies a certain carelessness in the composition of the treatise.

τοὺς λογιούμενους—πρυτανείαν ἐκάστην] Lys. 30 § 5, οἱ μὲν ἄλλοι τῆς αὐτῶν ἀρχῆς κατὰ πρυτανείαν λόγον ἀποφέρουσι (ἀναφέρουσι MSS). The text shews that this passage was rightly understood by Schömann, as referring to the accounts which had to be presented to the λογισταί, and not to the ἐπιχειροτονία τῶν ἀρχῶν (43 § 4). 'ἀναφέρειν nihil aliud esse potest quam quod alibi dicitur λόγον ἐγγράφειν, hoc est perscriptum rationem ad eos, quibus ea examinanda est, deferre, quemadmodum ipsum Lysiam mox hoc verbo ἐγγράφειν uti videmus, et Aeschines quoque ἀποφέρειν λόγον πρὸς τοὺς λογιστὰς dicit, in Ctesiph. § 22, eodem sensu quo paullo ante, § 20, λόγον ἐγγράφειν πρὸς τοὺς λογιστὰς dixerat' (Orusc. Acad. i 295).

§ 4. εὐθύνοὺς] 'Examiners of accounts.' Harp. in *Testim.* At the audit of accounts by the board of λογισταί, the εὐθυνοὶ were entitled to bring charges against the ὑπεύθυνος. The assessors of the εὐθύναι are mentioned in Andoc. *De Myst.* 78, ὅσων εὐθύναι τινὲς εἰσι κατεγνωσμένοι ἐν τοῖς λογιστηρίοις ὑπὸ τῶν

δύο ἐκάστῳ τῶν εὐθύνων, οἷς ἀναγκαῖόν ἐστι ταῖς ἀ[γορ]αῖς κατὰ τὸν ἐπώνυμον τὸν τῆς φυλῆς ἐκάστης καθῆσθαι· κἂν τις βούληται τινι τῶν τὰς εὐθύνας ἐν τῷ δικαστηρίῳ δεδωκότων, ἐντὸς τριῶν ἡ[μερῶν ἀφ'] ἧς ἔδωκε τὰς εὐθύνας εὐθυναν, ἂν τ' ἰδίαν ἂν τε δ[η]μο[σί]α[ν] ἐμβαλέσθαι, γράψας εἰς πινάκιον λελευκωμένον τοῦ- 20 νομα τό [θ'] αὐτοῦ καὶ τὸ τοῦ φεύγοντος, καὶ τὸ ἀδίκημ' ὃ τι ἂν ἐγκαλῇ, καὶ τίμημα ἐ[πι]γραφάμενος ὃ τι ἂν αὐτῷ δοκῇ, δίδωσιν 5 τῷ εὐθύνῳ. ὁ δὲ λαβὼν τοῦτο καὶ ἀν[ακρίνα]ς, εἰ μὲν καταγνῶ,

16 ταῖς ἀ[γορ]αῖς κ (K-W^{1,2}), 'ante ais fortasse λ; sed ρ quoque nonnumquam habet ligaturam, unde ἀγοραῖς conieci; fortasse autem longius quid desideratur' K⁴: ταῖς εὐθύναις H-L et B¹ invita papyro; ταῖς α. . . . ais B²⁻⁴, K-W³, K⁴, Th. κατὰ (κ, β, K-W³, Th): παρὰ H-L, K-W^{1,2}. 17 ἐκάστης κ, K-W, B²⁻⁴, Th; ἕκαστον H-L; ἐκάστο[ι]ς B¹, post τ prior tantum pars litterae η vel ο dispici potest. 18 τῷ λογισ-τηρίῳ Photiades. ΕΝΤΟΣ Γ (sc. ἐντὸς τριῶν) κ, K-W, β, Th; 'potest etiam λ legi' (non Γ), K⁴, quod praefert Lipsius. 19 ἂν τ' ἰδίαν ἂν τε δημοσίαν optime Gertz (edd., ἐάν τ'—ἐάν τ'—H-L). 20 δημοσίαν Gertz, K-W. 21 τὸ αὐτοῦ B¹, Richards, H-L, K³; τό τε αὐτοῦ K-W; τό θ' αὐτοῦ B²⁻⁴, K⁴, Th. 22 ἐπιγραφάμενος Wyse, Lipsius (K³); ἐπιγραφάμενος H-L, β, K⁴, Th; ὑπογραφάμενος K-W, sed υ valde incertum putat K. 23 ἀ[νακρίνας] Wayte, Lipsius, B⁴, Th: ἀ[ναγνούς] B¹⁻³, K-W, H-L, K^{3,4}, quamquam vel propter proximum καταγνῶ suspectum; dubitat Kaibel 214; ἀ[κούσας] K¹. μὲν secl. K-W, B.

εὐθύνων καὶ (ἡ MSS) τῶν πατέρων, and in CIA 809 δ, ὀφειλέτω ὁ μὴ ποιήσας μυριάς δραχμὰς ἱερὰς τῇ Ἀθηνᾷ καὶ ὁ εὐθυνος καὶ οἱ πατέρες ἐπ' ἀναγκὰς αὐτῶν καταγινώσκοντων ἢ αὐτοὶ ὀφειλόντων. In CIA ii 571 (B.C. 368), the εὐθυνος (of a deme) is mentioned together with his πατέρες; and *ib.* 578, the εὐθυνος (of another deme) with the λογιστῆς and the συνήγοροι. Cf. Plat. *Leg.* 761 E, ἀνυπεύθυνον οὐδένα δικάζειν καὶ ἄρχειν.

The text shews that, even after the audit had been passed, officials were liable to be prosecuted by private persons in respect to the manner in which they had discharged their duties. Cf. Lipsius in *Leipzig Verhandl.* (1891) 66, 67; also Wilamowitz, ii 231 ff., on λόγος and εὐθυνα.

ἀναγκαῖόν ἐστι ἀνάγκη is avoided here, and in 53 § 5, *propter hiatus* (Kaibel, 10, 15).

ταῖς ἀγοραῖς] hitherto understood to mean 'at the regular meetings held by the several tribes for the transaction of tribal business.' CIA ii 555, τῇ κυρίᾳ ἀγορᾷ κρύβδην ψηφισαμένων τῶν φυλετῶν ἐν τῇ ἀκροπόλει, 554 δ, ἐν τῇ ἀγορᾷ (of the tribe Pandionis), 564, ὅταν ἀγορὰν ποιῶν (Gilbert, i 224 n. 4). Wilamowitz, however (ii 235 n. 15), prefers making ἀγοραῖς 'the ordinary market-hours.' If action had to be taken 'within three days,' this could not admit of

waiting for the next 'meeting for the transaction of tribal business.'

κατὰ τὸν ἐπώνυμον τὸν τῆς φυλῆς ἐκάστης] 'opposite the statue of the eponymous hero of each of the several tribes.' The statues of the ten Attic heroes from whom the ten tribes derived their names (21 § 6) were a little beyond the θόλος and the βουλευτήριον (Paus. i 5, 1), in a conspicuous position on the northern slope of the Areopagus. Cf. Judeich, *Topogr. von Athen*, p. 310.

ἂν τ'... ἂν τε] Kühner, § 541.

ἐμβαλέσθαι] of formally 'putting in' a document, Dem. p. 1014, 25, ἐμβέβλη- μένος οὐδεμῶν μαρτυρίαν, 1104, 6; 1203, 26, ἐμβαλομένου γὰρ ἐμοῦ τὸν ὅρκον εἰς τὸν ἐχίνον.

τίμημα ἐπιγραφάμενος] Arist. *Plut.* 480, τί δῆτά σοι τίμημα ἐπεγράψω τῇ δίκῃ; Lex ap. Aeschin. i § 16, τίμημα ἐπιγραφάμενος. Dem. 29 § 8, τῶν ἐπιγεγραμμένων ('the damages claimed') ἐτίμησαν. Pollux (viii 47, of φάσις), ἐδίδοσαν ἐν γραμματέω γράψαντες τὴν φάσιν τά θ' ἐαυτῶν καὶ τὸ τοῦ κρινόμενου ὄνομα προσγράφαντες καὶ τίμημα ἐπιγραφάμενοι.

§ 5. ἀνακρίνας—καταγνῶ] The examination of the accounts by the λογισταὶ and συνήγοροι is described as an ἀνάκρισις. Ar. ap. Lex. *Rhet. Cant.* s.v. λογισταί, (συνήγοροι) συνανακρίνουσι τοῦτοις (sc. τοῖς λογισταῖς). For the general use of ἀνα-

παράδιδωσιν τὰ μὲν ἴδια τοῖς δικασταῖς τοῖς κατὰ δῆμ[ους τοῖς] τὴν
 25 φυλὴν ταύτην εἰσάγουσιν, τὰ δὲ δημόσια τοῖς θεσμοθέτα[ις ἀ]να-
 γράφει. οἱ δὲ θεσμοθέται, εἰς παραλάβωσιν, πάλιν εἰσάγουσιν
 [ταύτην τὴν] εὐθυναν εἰς τὸ δικαστήριον, καὶ ὃ τι ἂν γνῶσιν οἱ
 : δικαστ[αί, τοῦτο κύ]ριον ἐστίν.

49. δοκιμάζει δὲ καὶ τοὺς ἵππους ἢ βουλή, καὶ μὲν τις καλ[ὸν]
 ἵππον ἔχ[ων] κακῶς δοκῇ τρέφειν, ζημιοὶ τῷ σίτῳ, τοῖς δὲ μὴ
 δυναμ[ένους ἀ]κολ[ουθεῖν ἢ μὴ ᾔ]έλουσι μένειν ἀναγ[ώγοις] οὖσι,

24 legendum fortasse τὰ μὲν ἴδια παραδίδωσιν, alioqui in altero membro verbum
 languet. [τοῖς] τὴν B, K-W³, K⁴, Th; οὐ τὴν olim K (H-L). 25 ΕΙΣΑΓΟΥΣΙΝ K,
 H-L, B, Th: δικάζουσιν coni. Richards, E S Thompson (K-W). ἀ]ναγράφει K, H-L,
 spatium ante relicto B²⁻⁴, Th; [ἀνα]γράφει K¹, Th; [ἐγ]γράφει Lipsius; [ἐπι]γράφει
 B¹ (S¹); [τῆ]μα δ' ὑπο]γράφει K-W¹⁻², sed spatium non sinit; συναναγράφει Wilcken
 (K-W³), 'sed συν non video' K⁴. 26 εἰς; ἐπὶ K, Th; ἐπὶ K, Th; ἐπὶ K, Th; ἐπὶ K, Th; ἐπὶ K, Th;
 27 [ταύτην τὴν] spatii causa B²⁻⁴, K⁴, Th: [τὴν] legebatur. 28 τοῦτο κύριον ἐστίν
 van Leeuwen (edd.).

XLIX 1—2 καλ[ὸν] ἵππον ἔχ[ων] K-W (K³, B¹, Th); καλ[ῶς] ἔχ[ων] K¹; κατὰστασιν
 Wyse (H-L); καλ[ὸν] [πλούσιος] ὦν B²; καλ[ὸν] [δυνατὸς] ὦν B²⁻⁴ ('ante ων, χ vel s vel μ'
 K¹). 3 ἀκολουθεῖν Wyse (K³, B, K-W³, Th); τρέφειν K¹, τρέχειν Campbell, K-W¹⁻², H-L.

λλ

θέλουσι K, K-W, B, Th. ΔΝΑΓΟΥΣΙ, ἀλλ' ἀνάγουσι B¹⁻³, K⁴; ἀνάγουσι K-W³, Th; 'an
 ἀναβαίνουσι?' Th; ἀναγ<ώγοις> οὖσι van Leeuwen (H-L, K³, S¹, B⁴); (post θέλουσιν)
 σημείον ἐπιβάλλουσι K-W¹⁻².

κρίνω, as applied to the official conducting
 an ἀνάκρισις, cf. Dem. *Olympt.* 31, ὁ
 ἄρχων ἀνέκρινε πᾶσιν ἡμῖν τοῖς ἀμφισ-
 βητούσιν, and Isaeus, *Dicaeog.* 32, ἀνα-
 κρίναντες ἡμᾶς πολλάκις οἱ δαιτηταί. Cf.
 56 § 6 (γραφαὶ καὶ δίκαι) ὡς ἀνακρίνας
 εἰς τὸ δικαστήριον εἰσάγει. The statement
 that the ἀνάκρισις was also called an
 ἀνάγνωσις rests on a wrong reading in
 Dem. 53 § 22. The object of an ἀνάκρισις
 was to determine by a preliminary exami-
 nation, εἰ ὅλος εἰσάγειν χρή (Harp. s.v.).

δικασταῖς...κατὰ δῆμους] 16 § 5; 26
 § 3; 53.

τὴν φυλὴν ταύτην εἰσάγουσιν] 53 § 2,
 παραδιδάσκει...τοῖς τὴν φυλὴν τοῦ φεύγοντος
 δικάζουσιν, 58 § 2, τοὺς τὴν φυλὴν δικά-
 ζοντας, Lys. *Pancl.* 2, τοὺς τῇ Ἱππο-
 θωνίδει δικάζοντας, and Isaeus frag. 1,
 ὅτι πρὸς τὴν φυλὴν τοῦ κεκτημένου αἱ πρὸς
 δούλους λαγχάνονται δίκαι (Meier and
 Schömann, p. 90 n. Lips.).

ἀναγράφει] here 'to report,' lit. 'to
 hand in a written statement,' as in *Pol.*
 1321 ὁ 34, ἐτέρα δ' ἀρχή, πρὸς τὴν ἀναγρά-
 φεσθαι δεῖ τὰ τε ἴδια συμβόλαια καὶ τὰς
 κρίσεις ἐκ τῶν δικαστηρίων.

Of the other suggestions, ἐγγράφει has
 been supported by Aeschin. 3 § 20, Lys.
 30 § 5, Dem. 24 § 199, Arist. *Vesp.* 996
 (Lipsius); and ἐπιγράφει by the doubtful
 passage in Aeschin. 1 § 35.

The construction is slightly irregular,
 as a principal verb is not wanted, παρα-
 δίδωσιν being the verb to both clauses—
 μὲν and δέ. The irregularity is removed
 by striking out μὲν, but this involves a
 needless hiatus and is not absolutely
 necessary.

ὃ τι ἂν—κύριον ἐστίν] Cf. c. 45, l. 10.

XLIX § 1. δοκιμάζει—τοὺς ἵππους]
 Xen. *Oec.* ix 15, ἡ βουλὴ ἵππους καὶ
 ἵππεας δοκιμάζει, *Hipparch.* i 8, (ἡ πόλις)
 προσέταξε τῇ βουλῇ συνεπιμελεῖσθαι τοῦ
 ἵππικου, and iii 9—14, *Anab.* iii 3, 20
 (not of Athens) ἵπποι καὶ ἵππεῖς ἐδοκι-
 μάσθησαν. A *patera* from Orvieto, now
 in the Berlin Museum, represents three
 horsemen in *chlamys* and *petasus* leading
 their horses by the bridle past two
 standing figures who examine them as
 they pass. A third figure is seated and
 is entering memoranda on a scroll resting
 on his knees. In the centre is a ἵππο-
 τοξότης standing beside his horse. The
 subject is doubtless a ἵππων δοκιμασία
 (*Archaeol. Zeitung*, 37, 1880, pl. 15;
 Duruy, *Hist. d. Grecs*, ii p. 177; Darem-
 berg and Saglio, s.v. *Dokimasia*, p. 327;
 Schreiber's *Bilderatlas*, i 40, 7). On the
 δοκιμασία of the ἵππεῖς and their horses,
 see Martin, *Les Cavaliers Athéniens*, pp.
 328—334.

τοῖς μὴ δυναμένοις ἀκολουθεῖν κτλ.]